



File No.: EXP202200953

## RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: On March 25, 2022, a complaint was filed with registration number REGAGE22e00009470590 before the Spanish Agency for Data Protection against ORANGE ESPAGNE, S.A.U with NIF A82009812 and WORKING CAPITAL MANAGEMENT ESPAÑA, S.L. with NIF B86878121 (hereinafter, ORANGE and WCM respectively). The grounds for the complaint are as follows:

The complainant submits a complaint for receiving calls on their mobile line from the numbers \*\*\*PHONE.1, \*\*\*PHONE.2, \*\*\*PHONE.3, \*\*\*PHONE.4 (recognized by the caller ID service HIYA as coming from "ORANGE collections") and from the number \*\*\*PHONE.5 (recognized by the caller ID service HIYA as coming from the entity "WCM"). Despite the fact that the operator ORANGE had stated in a letter sent to the complainant as a result of a previous complaint that their data had not been transferred to any debt collection entity, between October 28 and November 11, 2021. Along with the notification, the following is provided:

- Screenshot showing the claimed numbers.
- Complaint filed with the Secretary of State for Telecommunications.
- Allegations submitted by Orange to the Secretary of State for Telecommunications.

SECOND: On June 25, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

### RESULT OF THE INVESTIGATIVE ACTIONS

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Prior to the actions carried out during the present investigative proceedings, it is verified that the respondent ORANGE responded to the complainant informing them that there had been no transfer of their data to any asset solvency and credit file nor to ORANGE BANK as they had not acquired any terminal on credit.

In this regard, upon investigating the possible inclusion of the complainant's data in asset solvency and credit files, the entities EQUIFAX IBÉRICA, S.L. and EXPERIAN BUREAU de CRÉDITO inform in respective writings received on December 2, 2022, with registration number REGAGE22e00055584234, and on December 23, 2022, with registration number REGAGE22e00059160806, that they currently do not find any registrations related to the complainant in their asset solvency and credit files.

Regarding the telephone calls mentioned in the complaint, the following actions are carried out: An internet search on the entity WCM indicated in the complaint as the issuer of two of the calls confirms that it is a company engaged in the collection of unpaid debts.

Information was requested from this entity regarding the calls made to the complainant on November 11, 2021, at 08:37 and 20:31, and on December 16, 2022, and January 4, 2023, the Agency received, with registration numbers REGAGE22e00058034878 and REGAGE23e00000856910 respectively, two writings sent by this entity stating that the aforementioned calls were aimed at recovering the debt

that the complainant maintained with the entity ORANGE on behalf and at the request of this operator, providing access to the personal data and debt of the complainant to WCM on November 11, 2021. They attach a service contract signed with ORANGE. In this contract, it is verified that the measures required by the data processor regarding data protection regulations are included: purpose of the processing and limitation thereof, duty of confidentiality, guarantee of the application of technical and organizational measures for data security, custody, prohibition of subcontracting without prior authorization from the data controller, prohibition of transferring personal data to third parties, return and deletion once the assignment is concluded, communication to the data controller of any suspicion of a security breach, etc.

Consultations made to the telephone operators assigned the remaining numbers indicated in the complaint confirm that the numbers \*\*\*PHONE.1, \*\*\*PHONE.2, \*\*\*PHONE.3 are assigned to the client VOZITEL, S.L. (hereinafter, VOZITEL), dedicated to offering solutions and platforms for telephone communications, and the number \*\*\*PHONE.4 to ISGF INFORMES COMERCIALES, S.L. (hereinafter, ISGF), engaged in debt collection management.

Requested from these entities information regarding the calls made to the complainant and the origin of their personal data, the Agency received the following writings of allegations:

ISGF

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Dated January 17, 2023, and registration number REGAGE23e00003220245, stating that the data was provided by ORANGE and that the purpose of the calls was the recovery of a debt that the claimant had with the defendant, having processed their data for this purpose from October 13 to November 10, 2021.

In a subsequent document, dated January 20, 2023, and registration number REGAGE23e00004097542, they present a service contract signed with ORANGE. In this contract, it is verified that the required measures regarding data protection regulations are included, reflecting the same aspects as the contract signed between ORANGE and the entity WCM.

VOZITEL

Dated January 18, 2023, and registration number REGAGE23e00003584209, stating that the numbers in question were assigned to the aforementioned entity WCM at the time the calls were made.

## LEGAL GROUNDS

I

### Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Credit Information Systems

Article 20 of the LOPDGDD, which regulates credit information systems, provides in its first section the following:

"1. Unless proven otherwise, the processing of personal data relating to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

- a) That the data has been provided by the creditor or by someone acting on their behalf or interest.
  - b) That the data refers to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.
  - c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.
- The entity maintaining the credit information system with data relating to the non-fulfillment of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data being blocked during that period.
- d) That the data is only maintained in the system while the non-fulfillment persists, with a maximum limit of five years from the date of maturity of the monetary, financial, or credit obligation.
  - e) That data relating to a specific debtor may only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts.
- When the right to limit the processing of the data has been exercised before the system by contesting its accuracy in accordance with Article 18.1.a) of Regulation (EU) 2016/679, the system will inform those who may consult it according to the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved.
- f) That, in the event that the request to conclude the contract is denied, or it does not come to fruition as a result of the consultation made, the person who consulted the system shall inform the affected party of the result of that consultation."

### III

#### Lawfulness of Processing

Article 6 of the GDPR details in its paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract;

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- c) the processing is necessary for the compliance with a legal obligation applicable to the data controller;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, particularly when the data subject is a child.

The provisions of item f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

### IV

#### Conclusion

Through the actions carried out by this Agency, it is confirmed that the data of the complainant were not included in the ASNEF and/or BADEXCUG credit and asset solvency files, as informed by ORANGE in its response to the complainant dated November 26, 2021.

Regarding the possible transfer of the complainant's data due to the calls mentioned in the complaint, there is no evidence that the respondent ORANGE transferred the personal data of the complainant to any entity outside the provisions of Article 33.1 of Organic Law 3/2018 of December 5, on the Protection of Personal Data and the guarantee of digital rights.

After the investigation, it is concluded that the calls did indeed occur, but by recovery entities that are considered "processors" of the data, so it would not have been mandatory to have communicated them as assignees.

Only the data processors WCM and ISGF had access to the personal data of the complainant for the purpose of recovering the possible debt that the respondent has with ORANGE.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for the Protection of Data.

Thus, in accordance with the aforementioned, by the Director of the Spanish Agency for the Protection of Data,

IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present actions.

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SECOND: TO NOTIFY this resolution to I.S.G.F. INFORMES COMERCIALES, S.L., ORANGE ESPAGNE, S.A.U., VOZITEL, S.L.U. and WORKING CAPITAL MANAGEMENT ESPAÑA, S.L. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for the Protection of Data within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-091222

Mar España Martí

Director of the Spanish Agency for the Protection of Data

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